

The Claremont City Council held a meeting on Wednesday, March 23, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor William Limoges
At-Large Councilor Lucas Beliveau
At-Large Councilor Matthew Mooshian

Absent:

At-Large Councilor Nicholas Koloski

Also present:

John MacLean, Interim City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

Assistant Mayor Matteau asked to change the last sentence of the second to last paragraph of page 2 in the March 9th, 2022, minutes “*We are projecting to put \$3,922,947 into Fund Balance this year*” to “We are projecting \$3,922,947 in Fund Balance this year.”

Councilor O’Hearne asked for the last sentence of the Citizen’s Forum on page 3 of the March 9th, 2022, minutes “*He volunteered to run that committee.*” to be stricken.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to accept the minutes of the March 9, 2022, City Council meeting.

Voice vote: motion carried 8-0

MAYOR'S NOTES

- On March 16th there was a groundbreaking ceremony at TLC, 231 Broad Street.
- At the Mayoral Round Table, Margaret Byrnes from the New Hampshire Municipal Association gave a presentation on current legislation. Mayor Girard received an email from Ms. Byrnes asking if anyone is interested in joining their Legislative Policy Committee. The next organizational meeting will be held on April 1st, 2022. The meetings will be held 3-5 times throughout the month of April on Mondays and Wednesdays.
- Ms. Byrnes also expressed to Mayor Girard that there are vacancies on the Board of Directors for the New Hampshire Municipal Association. These meetings are held on the third Friday of every month at 9am except during July and November. The open seat expires November 2023. There is no one from Sullivan County on the Board or Legislative Policy Committee. If any Council members are interested in joining, they are to see Mayor Girard after the Council meeting.

CITY MANAGER'S REPORT

General Remarks

- Highlighted the really good work being done by City Staff; he continues to be impressed with how few City workers there are, but how much gets accomplished and the quality of said work.
- The RFP process will be coming forward at the next Council meeting, relative for the proposal for transfer station.
- A calendar will be coming forward for the upcoming budget. He expressed while we are looking at zero based budgeting, the price and cost to do business has gone "sky high."
- Four collective bargaining Union contracts are being worked on.
- A new member of the City Staff was presented. Her name is Julia Bizzarro and she will be replacing Dorée Russell as Executive Assistant to the City Manager and Clerk to Council when Dorée retires. Julia comes from the Nashua area and recently relocated to Claremont. She has a background in healthcare and working closely with the President of a hospital.
- The Pleasant Street mobilization will be starting soon. Nancy Merrill, Director of Planning and Development, told Mr. MacLean today the project engineers are on-site. It is hoped the contractor will be back within a week or two.
- Ms. Merrill read aloud the announcement for the Block Party and stated this Friday at 9am at the CSBCC, there will be a meeting for anyone who is interested

in participating to talk about the Block Party on Pleasant Street July 9th 2022, along with other events happening this summer.

APPOINTMENT TO BOARDS AND COMMITTEES

Claremont Planning Board

A motion was made by Assistant Mayor Matteau and seconded by Councilor Mooshian to re-appoint David Putnam to seat 3 of the Claremont Planning Board.

Voice vote: motion carried 8-0

A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to re-appoint Richard Wahrlich to seat 4 of the Claremont Planning Board.

Voice vote: motion carried 8-0

Historic District Commission

A motion was made by Councilor O'Hearne and seconded by Councilor Beliveau to re-appoint David Messier to seat 4 of the Historic District Commission.

Voice vote: motion carried 8-0

Zoning Board of Adjustment

A motion was made by Councilor Beliveau and seconded by Councilor Limoges to re-appoint Michael Hurd to seat 2 of the Zoning Board of Adjustment.

Voice vote: motion carried 8-0

A motion was made by Councilor Beliveau and seconded by Councilor Stone to re-appoint James Petrin to seat 3 of the Zoning Board of Adjustment.

Voice vote: motion carried 8-0

A motion was made by Councilor Stone and seconded by Councilor Limoges to appoint Fred Thompson to seat A1 of the Zoning Board of Adjustment.

Seats A1, A2, and A3, were open. After discussion, Councilors agreed to appoint Mr. Thompson to seat A1. The seat currently expires March 31, 2022, so it was agreed that his appointment would be effective April 1, 2022, and would expire March 31, 2025.

Voice vote: motion carried 8-0

A motion was made by Assistant Mayor Matteau and seconded by Councilor Beliveau to appoint David Putnam to seat A2 Zoning Board of Adjustment

Voice vote: motion carried 8-0

CITIZEN'S FORUM

Gary Dickerman, Ward 3 resident and Chairman of the Claremont Conservation Commission, wanted to remind the Council that Spring is here and it is "clean up time." Mr. Dickerman noted he knew of at least three events scheduled for clean up:

- April 15th, 2022- Kiwanis are working with students from Stevens High School.
- April 24th, 2022- at 11am, the Rotary will be working on the Grissom Lane area.
- May 15th, 2022- Councilor Beliveau's clean up date.

Mr. Dickerman expressed that he spoke with Jefferey Barrette, and he is interested in doing some form of clean-up in the Fall.

Norm Blouin, Ward 3, spoke to Council about truck signs at Pleasant Street not keeping trailer trucks off of Pleasant Street. He suggested placing an officer in the area. Mr. Blouin also noted truck drivers may have a difficult time on Broad Street due to the two schools and shifting lanes. He stated that he has been in Claremont for over 40 years. After reading many articles on moving Claremont forward, he asked if we could create a new term. He stated Claremont needs more businesses, employment, and lower tax rates. Mr. Blouin suggested Claremont is not progressing and the majority of the population are becoming seniors and that youth are not staying in Claremont due to lack of opportunities.

OLD BUSINESS

Vote to Order Notice of Proposed Charter Amendment

Mayor Girard gave a brief overview of the proposed Charter Amendment which was corrected to make the language gender neutral, along with striking the sentence *"During his/her tenure of office, he/she shall reside within the City."*

A motion was made by Mayor Matteau and seconded by Councilor Stone that

The Council received a proposed amendment to the City Charter that seeks to alter Part I, Article III, Section 27 in order to remove the residency requirement for any potential hire for City Manager. The amendment also proposes to eliminate all pronouns provided within same.

The Claremont City Council hereby orders as well as authorizes the City Manager or designees to schedule and properly notice, in accordance with RSA 49-B, a hearing to be conducted by the Council in consideration of this proposed amendment to the City's Charter.

Roll call vote:

Contois – no

O’Hearne – yes

Stone – yes

Matteau – yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 7-1

NEW BUSINESS

Resolution 2022-22 Withdraw Up to \$17,850 from CSBCC Building M&R Non-Capital Reserve Fund – Public Hearing

WHEREAS the City Council, on June 11, 2014 by adoption of Resolution 2014-6, established the CSBCC Building Maintenance & Repair Non-Capital Reserve Fund (CSBCC Building Fund) for the purpose of funding maintenance and repair to the Claremont Savings Bank Community Center building and grounds as the need arises; and

WHEREAS there is a need for a replacement of a heat exchanger for one of the boilers that is anticipated to cost not more than \$17,850.00;

NOW THEREFORE BE IT RESOLVED by the City Council to raise, appropriate and expend the sum of up to \$17,850.00 from the CSBCC Equipment Non-Capital Reserve Fund (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED to authorize the City Manager or the Treasurer, or their designees, to withdraw said funds from the CSBCC Building Maintenance & Repair Non-Capital Reserve Fund; and

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 Vote Required)*

Mark Brislin, Parks and Recreation Director, explained to the Council this past January the CSBCC had a boiler that was red-tagged and placed out of commission by our mechanical service contractor due to a cracked and leaking heat exchanger. This was an emergency repair, and the heat exchanger was replaced. The boiler is now operational. The heat exchanger had a 10-year warranty and was approximately 9 years old. The heat exchanger is now with the manufacturer for warranty inspection. Once the warranty is approved, the City will be reimbursed.

A motion was made by Councilor Limoges and seconded by Councilor O’Hearne to adopt Resolution 2022-22 Withdraw Up to \$17,850 from CSBCC Building M&R Non-Capital Reserve Fund.

Councilor Limoges read the resolution into the record.

Mayor Girard opened a public hearing, as no one spoke Mayor Girard closed the public hearing.

Roll call vote:

Contois – yes

O’Hearne – yes

Stone – yes

Matteau – yes

Limoges – yes

Beliveau – yes

Mooshian – yes

Girard – yes

Motion carried 8-0

Steel Mill Solar Update

The City and Claremont Development Authority own land off of Grissom Lane that has a current Option & Lease Agreement with Steel Mill Solar Co. for commercial solar power. The Option Agreement ends on March 31, 2022, and Steel Mill has informed the City that they were unable to make the utility interconnection necessary for the 10 MW photovoltaic system that they were contemplating. During original Option negotiations, the City and Steel Mill did discuss a separate negotiated agreement to supply the City with up to 5 MW of power. Steel Mill would like to pursue an agreement with the City for an up to 5 MW project to serve the City, exclusively.

Ms. Merrill explained the company has been surveying this site for a couple of years and ultimately decided not to go forward because of the interconnection. This was necessary to the utility and was so expensive it made the project not worthwhile. This company is still open to discussions with the City for a purchase agreement of up to 5MW. She reviewed the following options that were on page 2 of the summary:

- Power Purchase Agreement with City buying energy and Renewable Energy Certificates (RECs) and taking ownership of the facility over a period of 7-10 years. Revenue source through the sale of RECs and long-term anticipated savings in energy costs.
- Standard Commercial Lease as already negotiated with Steel Mill Solar building and owning the facility and selling the power to the City for a 20-year fixed price. Revenue source: land rental and PILOT.

- City issues a Request for Qualifications for a solar project up to 5MW on the City and CDA parcels requesting bids on one or both of the above business models for municipal power.
- City issues a Request for Qualifications to engage a firm specializing in solar energy siting and installation to identify potential PV projects on City-owned parcels. The City would retain the right to engage the selected firm to develop a PV facility based on the results of the study.

Ms. Merrill explained that our interconnection can only handle up to 5MW. To go up any higher in mega-watts would require a full rebuild of our interconnection. Disposal of the solar panels could be built into the power purchase agreement. She also explained the cost of disposal would be built into the bid. Regarding costs, she noted the City puts its power out to bid and gets a really good price and the rate stays the same for a long time.

Mr. MacLean stated this is difficult for the Council to decide on tonight based on the preliminary report, and asked if this should go to an energy advisory committee. Ms. Merrill said there is no energy advisory committee and suggested this be on another agenda. Ms. Merrill stated she will work with her staff and will come back to the Council with more information.

Sullivan Tower Stack & Pump House Discussion

The City entered a contract with Structural Preservation Systems to evaluate the tower and surrounding structures. The engineer was at the site on Friday, March 11, 2022. The report was distributed to Council.

Ms. Merrill said the cost for demolition did not include the adjacent building. However, it can be added, which would increase the cost. Phase-1 and Phase-2 Brownfield study was done and there is some contamination.

A motion was made by Councilor Stone and seconded by Councilor Limoges to demolish the Sullivan Smokestack and the adjacent buildings

Mayor Girard asked if anyone from the public would like to speak.

Keith Raymond, Ward 2 resident and former Council member, asked the Council not to decide on the Sullivan Smokestack so quickly without hearing from the community and whether they want something else done with that property.

Jeff Barrette, Ward 1, expressed to the Council there is always grant money to save things. Mr. Barrett stated, demolishing the Sullivan Smokestack would be a big mistake. If you tear it down, you may not be able to rebuild that close to the river. He added that private investors may be able to help save this site.

Derek Ferland, Ward 3, expressed there is a business case to be made. He stated this site could provide future revenue if private investors redevelop it as a part of the Riverside Conceptual

Development. Mr. Ferland noted April 15th was the deadline for the Congressional Spending Request. He suggested the New Hampshire Preservation Alliance may be interested in preserving this site.

Councilor Stone talked about other needs (i.e., roof needs repairing) and that we can't save everything that is crumbling. He continues to stand with his motion to demolish.

Bob Porter, Ward 3, declared this was a matter of historical interest. Mr. Porter noted 50 years ago there was a motion to demolish the entire mill district and make it into parking.

Councilor Beliveau asked if there was any way to do this in sections, as the report states the worst of the tower is the top 16 feet, and then having the City look into grants for the rest of it. Ms. Merrill explained that one of the options outlined in the report.

A motion was made by Councilor O'Hearne and seconded by Councilor Beliveau to table discussion until next meeting.

Roll call vote:

Contois – yes

O'Hearne – yes

Stone – no

Matteau - yes

Limoges – no

Beliveau - yes

Mooshian - yes

Girard – yes

Motion carried 6-2

Mr. MacLean asked if this could wait until the meeting after next to have enough time to gather information on grants. Councilors O'Hearne and Beliveau were okay with waiting until the following meeting; there were no objections.

Councilor Beliveau asked to have demolition prices for the adjacent buildings to the Smokestack.

Councilor Stone requested this report be made available on the City website so everyone can view it.

Economic Development Administration ARPA Grant Application – 56 Opera House Square

The following information was included in the Council packet.

56 Opera House Square has been vacant for several decades and is the subject of a major reconstruction/renovation project by the Claremont Development Authority and West Claremont Center for Music & the Arts (WCCMA). The City transferred the building to the CDA several years ago.

The City applied for and received \$500,000 in CDBG funding and WCCMA applied for and received \$400,000 in tax credit funding for this project. WCCMA has also received other individual and foundation donations towards their needed interior fit up and expenses.

During the pandemic the project proceeded with final engineering and architectural design, as previous estimates were based on conceptual design. As a result of supply chain issues and inflation, the estimates are higher than originally anticipated. We have an opportunity to apply for a federal Economic Development Administration EAA grant to boost the project forward. If funding is approved the EDA grant will cover most of the construction costs, with match coming from existing funds. The CDA and WCCMA also continue to look at other funding sources to make the Claremont Creative Center a reality.

Ms. Merrill explained the grant. She said this should have no effect on the tax rate.

A motion was made by Councilor Beliveau and seconded by Councilor O’Hearne that the Claremont City Council hereby authorizes the City Manager or his designee to execute and perform all actions as may be required on behalf of the Claremont Development Authority/City of Claremont, to apply for a grant from the Economic Development Administration, Department of Commerce, for up to \$2,000,000, and, if awarded, accept and expend said funds to be used for the redevelopment of the building located at 56 Opera House Square.

Roll call vote:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

Resolution 2022-23 Airport Runway 11/29 18B Survey – Public Hearing

WHEREAS the City is undertaking the Airport Runway 11/29 18 B Survey Project (the “Project”) at the Claremont Municipal Airport; and

WHEREAS the City of Claremont, NH, has applied for and been notified that it has been awarded a grant from the Federal Aviation Administration (the “FAA”) in the amount of \$145,000.00 to fund the Airport Runway 11/29 18 B Survey Project; and

WHEREAS the City would like to now accept and expend said grant funds;

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts the FAA grant (Project SBG-02-23-2022) Airport Runway 11/29 Runway 18 B Survey Project in the amount of \$145,000.00; and

BE IT FURTHER RESOLVED to raise, appropriate and expend the sum of \$145,000.00 with \$130,500 (90%) to come from the Federal Aviation Administration Grant SBG-02-23-2022, \$7,250.00 (5%) to come from the NH Department of Transportation Bureau of Aeronautics, and the remaining \$7,250.00 (5%), as the City's share of the project, to be taken from the Airport Special Revenue Fund (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (2/3 Vote Required)

A motion was made by Councilor O’Hearne and seconded by Councilor Beliveau to adopt Resolution 2022-23 Airport Runway 11/29 18B Survey.

Resolution 2022-23 was read into the record by Councilor O’Hearne.

Mayor Girard opened a public hearing, no one spoke, he closed the public hearing.

Roll call vote:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Limoges – yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

Proposed Council Rule Change

Written copy of the proposed Council Rule change was given to the Council at its March 9, 2022, meeting.

DRAFT

Council Rule # 91-A Email Requests

The Claremont City Council operates under the following principles:

- Openness in the conduct of public business is essential to a democratic society to ensure both the greatest possible public access to the actions, discussions and records of all public bodies, and their accountability to the people.
- The public has the right to inspect, during regular business hours and at the appropriate department location, all public governmental records and copies except those records that are temporarily unavailable or are specifically exempted by law.

To ensure compliance with NH RSA 91-A and with the due process rights of the public before the Claremont City Council.

All ***Non-Privileged*** Council Email Correspondences will be released without a Legal Review by the City Solicitor under a 91-A Request being submitted in compliance with current city procedure.

All ***Privileged*** Council Emails, as defined under NH RSA 91-A will be sent to the city Solicitor for a legal review and redaction as required under current law. All emails deemed "**Privileged**" will be marked by the sender if it complies with the designation of "**Privileged**" Under RSA 91-A.

Any questionable email or a portion of an email may be exempt from disclosure shall be addressed by the City Attorney or designee prior to release.

The City Manager or their designee will facilitate the actual release of all council emails.

Councilor Stone said the Policy Committee looked at this as a policy, but decided it should be a Council Rule. Assistant Mayor Matteau said this rule is for Council emails only. It would be more efficient to have a single rule and since the City Administration receives the Right-to-Know requests, the City Administration should create the rule. Councilor Stone said that the City Manager can't make a policy for the Council. Councilor O'Hearne said that public officials are different than employees. Mayor Girard said that 91-A requests come to the City Manager's Office.

A motion was made by Councilor Stone and seconded by Councilor O’Hearne to adopt the RSA 91A Council Rule Change.

Roll call vote:

**Contois - yes
O’Hearne - yes
Stone - yes
Matteau - no
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - no
Motion carried 6-2**

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Stone asked for clarification about what the ARPA funds can be used for in regard to City Hall repairs. Mr. MacLean answered they can be used for the City Hall roof project. Ms. Richmond will create a list of projects that the ARPA funds may be used for.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 7:44 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Beliveau to adjourn.

**Voice vote: motion carried 8-0
Motion carried 8-0**

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council